

MASTER SERVICE AGREEMENT

This Master Service Agreement ('Agreement') is entered into as of January 15, 2026 ('Effective Date') by and between TechCorp Solutions Inc., a Delaware corporation with offices at 123 Innovation Drive, San Francisco, CA 94105 ('Service Provider') and GlobalRetail Enterprises LLC, a New York limited liability company with offices at 456 Commerce Street, New York, NY 10001 ('Client').

1. DEFINITIONS

1.1 'Confidential Information' means any non-public information disclosed by either party to the other, whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances of disclosure. This includes but is not limited to: trade secrets, business plans, customer lists, pricing information, technical data, software code, algorithms, and financial information.

1.2 'Deliverables' means all software, documentation, reports, and other materials to be delivered by Service Provider to Client as specified in any Statement of Work.

1.3 'Intellectual Property Rights' means all patents, copyrights, trademarks, trade secrets, and any other proprietary rights.

2. SCOPE OF SERVICES

2.1 Service Provider agrees to provide Client with cloud-based enterprise resource planning (ERP) software services, including system implementation, customization, training, and ongoing support as described in the attached Statement of Work (Exhibit A).

2.2 Service Provider shall assign qualified personnel with appropriate expertise to perform the Services. Client may request replacement of any personnel for reasonable cause, and Service Provider shall accommodate such requests within fifteen (15) business days.

3. PAYMENT TERMS

3.1 Client shall pay Service Provider a monthly fee of \$25,000 USD for the Services, payable within thirty (30) days of receipt of invoice. Late payments shall accrue interest at a rate of 1.5% per month or the maximum rate permitted by law, whichever is less.

3.2 All fees are exclusive of applicable taxes. Client shall be responsible for all sales, use, and similar taxes, except for taxes based on Service Provider's income.

4. CONFIDENTIALITY

4.1 Each party agrees to maintain the confidentiality of the other party's Confidential Information using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care. Neither party shall disclose the other party's Confidential Information to any third

party without prior written consent.

4.2 The confidentiality obligations shall survive termination of this Agreement for a period of five (5) years.

5. INTELLECTUAL PROPERTY

5.1 Service Provider retains all Intellectual Property Rights in and to the Service Provider's pre-existing materials, tools, and methodologies. Client is granted a non-exclusive, non-transferable license to use such materials solely in connection with the Deliverables.

5.2 Upon full payment, Client shall own all right, title, and interest in and to the custom Deliverables specifically created for Client under this Agreement, excluding any pre-existing Service Provider materials incorporated therein.

6. WARRANTIES AND DISCLAIMERS

6.1 Service Provider warrants that the Services will be performed in a professional and workmanlike manner in accordance with generally accepted industry standards.

6.2 EXCEPT AS EXPRESSLY SET FORTH HEREIN, SERVICE PROVIDER MAKES NO WARRANTIES, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT. SERVICE PROVIDER DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED OR ERROR-FREE.

7. LIMITATION OF LIABILITY

7.1 IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, REVENUE, DATA, OR BUSINESS OPPORTUNITIES, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

7.2 SERVICE PROVIDER'S TOTAL AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CLIENT TO SERVICE PROVIDER IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM. THIS LIMITATION SHALL APPLY REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT, TORT, OR OTHERWISE.

8. INDEMNIFICATION

8.1 Service Provider shall indemnify, defend, and hold harmless Client from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising from any claim that the Deliverables infringe any third party's intellectual property rights.

8.2 Client shall indemnify, defend, and hold harmless Service Provider from and against any claims arising from Client's use of the Services in violation of this Agreement or applicable law.

9. TERM AND TERMINATION

9.1 This Agreement shall commence on the Effective Date and continue for an initial term of three (3) years. **Thereafter, this Agreement shall automatically renew for successive one (1) year periods unless either party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term.**

9.2 Either party may terminate this Agreement for cause if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receiving written notice thereof.

9.3 Upon termination, Client shall pay all fees owed through the date of termination, and Service Provider shall promptly return all Client Confidential Information. Client shall be entitled to receive a copy of all data in a mutually agreed-upon format within thirty (30) days of termination.

10. DATA PROTECTION AND SECURITY

10.1 Service Provider shall implement and maintain appropriate technical and organizational security measures to protect Client's data against unauthorized access, loss, or destruction. Such measures shall include encryption at rest and in transit, access controls, regular security assessments, and compliance with SOC 2 Type II requirements.

10.2 In the event of a data breach affecting Client's data, Service Provider shall notify Client within seventy-two (72) hours of discovery and shall cooperate fully in any investigation and remediation efforts.

11. NON-COMPETE AND NON-SOLICITATION

11.1 During the term of this Agreement and for a period of two (2) years following termination, Client shall not directly or indirectly solicit, hire, or engage any employee of Service Provider who performed Services under this Agreement, without Service Provider's prior written consent.

11.2 The parties acknowledge that this restriction is reasonable and necessary to protect Service Provider's legitimate business interests.

12. DISPUTE RESOLUTION

12.1 Any dispute arising out of or relating to this Agreement shall be resolved through binding arbitration in accordance with the Commercial Arbitration Rules of the American Arbitration Association. The arbitration shall take place in San Francisco, California, and shall be conducted by a single arbitrator mutually selected by the parties.

12.2 Prior to initiating arbitration, the parties shall attempt in good faith to resolve any dispute through mediation for a period of at least thirty (30) days.

13. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws principles. Each party irrevocably submits to the exclusive jurisdiction of the state and federal courts located in San Francisco County, California.

14. FORCE MAJEURE

Neither party shall be liable for any failure or delay in performing its obligations under this Agreement due to circumstances beyond its reasonable control, including but not limited to acts of God, natural disasters, war, terrorism, riots, pandemics, government action, or failures of third-party telecommunications or power supply.

15. GENERAL PROVISIONS

15.1 Entire Agreement: This Agreement, together with all exhibits and attachments, constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, and agreements.

15.2 Amendment: This Agreement may only be amended by a written instrument signed by both parties.

15.3 Severability: If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

15.4 Assignment: Neither party may assign this Agreement without the prior written consent of the other party, except in connection with a merger, acquisition, or sale of substantially all assets.

15.5 Notices: All notices under this Agreement shall be in writing and shall be deemed delivered when sent by certified mail, overnight courier, or email with confirmation of receipt.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

TECHCORP SOLUTIONS INC.

By: _____

Name: Sarah Johnson

Title: Chief Executive Officer

Date: January 15, 2026

GLOBALRETAIL ENTERPRISES LLC

By: _____

Name: Michael Chen

Title: Chief Operations Officer

Date: January 15, 2026